

PETITION TO EXPUNGE AFTER PRETRIAL INTERVENTION (MISS. CODE ANN. SEC. 99-15-123(3))

USE THIS PAGE ONLY IF YOU COMPLETED A PRETRIAL INTERVENTION PROGRAMME under Miss. Code Ann. Sec. 99-15-123. If you completed an INTERVENTION COURT under Sec. 9-23-23, do not file this - see the intervention court page in this packet.

IN THE COURT OF COUNTY, MISSISSIPPI
(the court that made the noncriminal disposition of the charge)

STATE OF MISSISSIPPI

VS.

....., PETITIONER

CAUSE NO.

PETITION TO EXPUNGE AFTER PRETRIAL INTERVENTION

COMES NOW the Petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, and petitions this Court under Miss. Code Ann. Sec. 99-15-123(3) to expunge the record of the case identified below, and would show:

1. IDENTIFYING INFORMATION.

Petitioner's name: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1971-12-31

Mailing address: 1188 Upper Notch Crossing Road, Apartment 14B, Bay St. Louis, Mississippi
39520-2214

Telephone: (228) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

2. THE CASE. Copied from the programme completion order and the final disposition:

Charge or charges as the record states them:

.....

Date of arrest:

Arresting agency:

Date the pretrial intervention programme was successfully completed:

.....

Date of the noncriminal disposition, and how the record words it:

.....

3. THE STATUTORY GROUND. Section 99-15-123(3) provides: 'Upon petition therefor, the court shall

expunge the record of any case in which an arrest was made, the person arrested was released and the case was dismissed or the charges were dropped or there was no disposition of such case.' The Court's duty is MANDATORY once petitioned. Petitioner is within that provision because:

State which limb applies - an arrest was made and Petitioner was released and the case was dismissed, or the charges were dropped, or there was no disposition. Copy the docket wording rather than characterising it:

.....

(Note: Sec. 99-15-123(3) does NOT contain the 'found not guilty at trial' limb that Sec. 99-19-71(4) contains. Do not plead an acquittal here.)

4. THE DISPOSITION FOLLOWED SUCCESSFUL COMPLETION. Section 99-15-123(1) provides that on successful completion the court shall make a noncriminal disposition of the charge or charges, which Sec. 99-15-103 defines as dismissal of the charge.

5. NO ORDER HAS ALREADY BEEN ENTERED. Petitioner has asked the clerk whether any order dismissing or expunging this case has already been entered, and:

.....

WHEREFORE, Petitioner asks the Court to expunge the record of the case identified above under Miss. Code Ann. Sec. 99-15-123(3).

DATE SIGNATURE OF PETITIONER

(Petitioner signs and dates this petition. Nothing on this page is signed or dated for Petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Bay St. Louis, Mississippi 39520-2214

TELEPHONE: (228) 555-0199 ext. 4417 EMAIL:

maria.alejandra.oshaughnessy.whitfield@longmailexample.org

DECLARATION. Petitioner states that the matters set out above are true and correct to the best of Petitioner's knowledge, information and belief.

Route: obligation:unit:MS:ms-diversion:ms-diversion-intervention-court-verification ;
obligation:unit:MS:ms-diversion:ms-diversion-pti-expungement-petition

PROPOSED ORDER OF EXPUNGEMENT

USE THIS PAGE ONLY ON THE PRETRIAL INTERVENTION BRANCH.

IN THE COURT OF COUNTY, MISSISSIPPI
(the court that made the noncriminal disposition of the charge)

STATE OF MISSISSIPPI

VS.

....., PETITIONER

CAUSE NO.

ORDER OF EXPUNGEMENT

THIS DOCUMENT IS A PROPOSED ORDER. It is unexecuted. It records no finding this Court has made and nothing in it asserts that the Court has acted.

THIS CAUSE came before the Court on the Petition of Maria-Alejandra O'Shaughnessy-Whitfield under Miss. Code Ann. Sec. 99-15-123(3).

The Court FINDS (findings to be made by the Court):

.....
.....

IT IS THEREFORE ORDERED AND ADJUDGED that the record of the case identified in the Petition be, and it is hereby, EXPUNGED under Miss. Code Ann. Sec. 99-15-123(3).

SO ORDERED AND ADJUDGED this day of, 20....

.....

JUDGE

APPROVED AS TO FORM:

.....

Prosecuting authority

(The findings, the date of entry, the judge's signature and the prosecuting authority's approval as to form are all left blank.)

Route: obligation:unit:MS:ms-diversion:ms-diversion-intervention-court-verification ;
obligation:unit:MS:ms-diversion:ms-diversion-pti-expungement-petition

CERTIFICATE OF SERVICE

USE THIS PAGE ONLY ON THE PRETRIAL INTERVENTION BRANCH. Nothing is served on the intervention court branch.

IN THE COURT OF COUNTY, MISSISSIPPI
(the court that made the noncriminal disposition of the charge)

STATE OF MISSISSIPPI

VS.

....., PETITIONER

CAUSE NO.

CERTIFICATE OF SERVICE

Neither Sec. 99-15-123 nor Sec. 9-23-23 prescribes notice, an objection period or a hearing for this relief. On the petition branch the prosecuting authority receives a copy as ordinary practice, and this certificate evidences it.

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that I have this day served a true and correct copy of the Petition to Expunge After Pretrial Intervention on the prosecuting authority, by United States mail, postage prepaid, or by hand delivery, addressed as follows:

Prosecuting authority - name and office:

.....

Address served:

.....

Manner of service (United States mail or hand delivery):

Date served:

.....

Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner

Date:

(Service dates are written when service is actually made. No prosecutor's name or address is printed here: the platform holds none and does not guess one.)

Route: obligation:unit:MS:ms-diversion:ms-diversion-intervention-court-verification ;
obligation:unit:MS:ms-diversion:ms-diversion-pti-expungement-petition

DOCUMENTS TO OBTAIN FIRST, ON EITHER BRANCH

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

Get these first, whichever branch you are on. On the intervention court branch they may be the ONLY thing you need.

1. CERTIFIED COPY OF THE PROGRAMME COMPLETION ORDER - from the clerk of the administering court. It records that you completed the programme successfully. On the intervention court branch, successful completion is the whole trigger, so this document is the evidence of your relief.

2. CERTIFIED COPY OF THE FINAL DISPOSITION, AND OF ANY DISMISSAL OR EXPUNGEMENT ORDER ALREADY ENTERED - from the clerk of the administering court. ASK THE CLERK WHAT THE FINAL DISPOSITION WAS AND WHETHER ANY ORDER HAS ALREADY BEEN ENTERED. Many people already have relief and simply do not hold a copy of it. Finding that out first can end the matter here.

3. YOUR MISSISSIPPI CRIMINAL HISTORY RECORD - from the Mississippi Criminal Information Center. It shows what the state's record actually says about this case now, which is the thing you are trying to fix.

COMPLETED, NOT TERMINATED. Both branches turn on SUCCESSFUL completion. If the programme was terminated rather than completed, the Sec. 99-15-115 waiver is void and prosecution resumes. That is a stop condition, not a paperwork problem.

Route: obligation:unit:MS:ms-diversion:ms-diversion-intervention-court-verification ;
obligation:unit:MS:ms-diversion:ms-diversion-pti-expungement-petition

WHICH BRANCH YOU ARE ON, AND WHAT EACH ONE REQUIRES

This packet is prepared for clearing the record after you completed a Mississippi pretrial intervention programme or an intervention court.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

FIRST, WORK OUT WHICH BRANCH YOU ARE ON. The two look similar and the law treats them completely differently.

PRETRIAL INTERVENTION under Sec. 99-15-123 - a district attorney's pretrial intervention programme. A PETITION IS REQUIRED. Subsection (3) says 'Upon petition therefor, the court shall expunge'. The court's duty is mandatory once you ask, but no order enters until you do. Use the petition, the proposed order and the certificate of service in this packet.

INTERVENTION COURT under Sec. 9-23-23 - a drug court or other intervention court. NOTHING IS FILED. The relief follows successful completion by operation of the statute. See the intervention court page in this packet.

IF YOU ARE NOT SURE WHICH ONE YOU COMPLETED, ask the clerk of the administering court before you file anything.

BEFORE EITHER BRANCH: FIND OUT WHAT HAS ALREADY HAPPENED. Ask the clerk what the final disposition was and whether any order dismissing or expunging the case has already been entered. Many people already have relief entered and simply do not hold a copy of it. If that is you, the matter may end there.

WHERE THE PETITION IS FILED, ON THE PRETRIAL INTERVENTION BRANCH. File the petition, the proposed order and the certificate of service with the CLERK OF THE COURT THAT MADE THE NONCRIMINAL DISPOSITION.

WHAT IT COSTS, AND WHAT IS ACTUALLY KNOWN.

The \$150 filing fee you may have read about is levied by Miss. Code Ann. Sec. 99-19-72 on petitions to expunge an offense under Sec. 99-19-71. NEITHER SECTION IN THIS PACKET IS SEC. 99-19-71. The fee does not reach Sec. 99-15-123 or Sec. 9-23-23 by its terms, and neither of those sections specifies a fee of its own.

So no fee amount is established for this route in the records this packet is built from. ASK THE CLERK OF THE ADMINISTERING COURT what that court charges, before you file. Ask the same clerk about any waiver: none is established for either section either.

Separately, Sec. 9-23-23 requires that fines and fees assessed AND NOT WAIVED by the court have been paid for completion to count as successful. That is a condition of the relief, not a filing fee.

WHO YOU SERVE. Neither section prescribes notice, an objection period or a hearing for this relief. On the petition branch the prosecuting authority receives a copy as ordinary practice, by United States mail or hand delivery, evidenced by the certificate of service. NOTHING IS SERVED on the intervention court branch.

A DISMISSAL WITHOUT PREJUDICE IS NOT A CASE THAT CAN NEVER COME BACK. A noncriminal disposition under Sec. 99-15-103 is a dismissal of the charge WITHOUT PREJUDICE to reinstatement on the district attorney's motion. Know that before you rely on it.

DO NOT PLEAD AN ACQUITTAL HERE. Section 99-15-123(3) reaches a case where an arrest was made, the person was released, and the case was dismissed, or the charges were dropped, or there was no disposition. It does NOT contain the 'found not guilty at trial' limb that Sec. 99-19-71(4) contains. Copy your docket wording rather than characterising it.

WHEN TO STOP AND GET HELP INSTEAD.

- The programme was TERMINATED rather than completed. That voids the Sec. 99-15-115 waiver and prosecution resumes.
- The completion order is missing and the clerk cannot confirm what was entered.
- It is unclear whether an intervention court expungement already occurred.
- The case involved an IMPLIED CONSENT VIOLATION, which Sec. 9-23-23 bars from expunction and which routes to the DUI track.
- You are not a United States citizen.

Where self-help stops, the clerk of the administering court answers what was entered and what that court charges, and the Mississippi Criminal Information Center issues the criminal history record that shows what the state's record says now.

Route: obligation:unit:MS:ms-diversion:ms-diversion-intervention-court-verification ;
obligation:unit:MS:ms-diversion:ms-diversion-pti-expungement-petition

THE INTERVENTION COURT BRANCH: WHY NOTHING IS FILED

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

IF YOU COMPLETED AN INTERVENTION COURT UNDER MISS. CODE ANN. SEC. 9-23-23, THERE IS NOTHING TO FILE. That is not this packet being unhelpful. It is what the statute says, and filing a petition you do not need can cost you money and time for no benefit.

WHAT SEC. 9-23-23 ACTUALLY SAYS. 'If the participant completes all requirements imposed upon him by the intervention court, including the payment of fines and fees assessed and not waived by the court, the charge and prosecution shall be dismissed. If the defendant or participant was sentenced at the time of entry of plea of guilty, the successful completion of the intervention court order and other requirements of probation or suspension of sentence will result in the record of the criminal conviction or adjudication being expunged. However, no expunction of any implied consent violation shall be allowed.'

WHY THAT MEANS NO PETITION. Section 9-23-23 contains no petition language, no application requirement, no fee, no hearing, no notice and no waiting period. Every other Mississippi record-clearing provision that requires you to ask - Secs. 99-19-71, 99-15-26(5), 99-15-123(3), 41-29-150(d)(2) and 63-11-30(13) - says so expressly. This one does not. The relief follows completion by operation of the statute.

SO WHAT DO YOU ACTUALLY DO?

STEP ONE. Ask the clerk of the administering court for a CERTIFIED COPY of the order recording your successful completion, and for a certified copy of the final disposition and of any dismissal or expungement order already entered.

STEP TWO. Read what the clerk gives you. If an order has already been entered, you have your relief; keep the certified copy, because that document is what you show anyone who asks.

STEP THREE. Get your Mississippi criminal history record from the Mississippi Criminal Information Center and check that it matches. The statute operating in your favour and the state's record actually reflecting it are two different things.

STEP FOUR. If the record does not reflect the relief and the clerk cannot confirm what was entered, STOP AND GET HELP. That is a stop condition on this route, not something to solve by filing a petition under a section that does not require one.

THE ONE THING SEC. 9-23-23 WILL NOT DO. No expunction of any IMPLIED CONSENT VIOLATION is allowed. If your case involved one, this route is barred for it and it routes to the DUI track instead.

FINES AND FEES. Completion under Sec. 9-23-23 includes the payment of fines and fees assessed AND NOT WAIVED by the court. If the court waived them, they are not owed for this purpose. If it did not and they are unpaid, completion is not successful.

AND IF YOU WERE ON PRETRIAL INTERVENTION INSTEAD. Then you are on the other branch, and a petition IS required: Sec. 99-15-123(3) says 'Upon petition therefor'. The court's duty is mandatory once you petition, but no order enters until you do. Use the petition, proposed order and certificate of service in this packet.

Route: obligation:unit:MS:ms-diversion:ms-diversion-intervention-court-verification ;
obligation:unit:MS:ms-diversion:ms-diversion-pti-expungement-petition